

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: June 26, 2026

The court will endeavor to post tentative rulings on the Court's website by 3 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Amjadi vs. Jolly Berry Law</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
51	<i>Berkowitz vs. Pelagic, Inc.</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
52	<i>Escobedo vs. Hyundai Motor America</i>	Defendant moves, under CCP section 397, subdivisions (a) and (c), for an order transferring this case to Imperial County Superior Court. (ROA 24.) The court “has discretionary power to transfer the case to any other county ‘[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.’” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 3:553, citing Code Civ. Proc. § 397, subd. (c); <i>Rycz v. Sup.Ct.</i> (2022) 81 Cal.App.5th 824, 836.) In support of its motion, Defendant proffers a declaration from its counsel, whereby counsel attests that the subject sales contract arose in Imperial County, where Plaintiff Arturo Escobedo purchased the subject vehicle from the Imperial Valley Hyundai dealership, which is located at 634 Thomas Lane, El Centro, CA 92243. (ROA 25 [Kurtz Decl. at ¶¶ 2, 4, Exh. A].) The declarant also proffers a copy of the subject vehicle’s repair service history, which reflects that all repairs and/or servicing was performed at the same Imperial Valley Hyundai dealership. (Kurtz Decl. at ¶ 3, Exh. B.) Based on the uncontroverted evidence, the Court finds Orange County is not a “convenient” venue for the witnesses who the parties would reasonably be expected to call. The Court finds the convenience of these witnesses would be best served by transferring this action to the county where the dealership is located, and where the repairs and/or

		servicing took place. (See <i>Rycz v. Superior Court of San Francisco County</i> (2022) 81 Cal.App.5th 824, 837.) Defendant Hyundai Motor America’s (“Defendant”) motion to transfer venue is therefore GRANTED. Defendant is responsible for payment of the fees and costs associated with the transfer. (Code Civ. Proc., § 399, subd. (a).) Defendant is ordered pay the transfer fees and costs within 5 days, if they have not already been paid. Within 10 days, Defendant is to submit a proposed order for the Court’s signature. The order must contain at least the following statements: (1) the Court orders this matter be transferred to the Superior Court of California for the County of Imperial upon payment of all the necessary fees required by law; (2) the basis of the transfer is because Imperial County is a more “convenient” venue for this action; (3) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; and, (4) the court, division, and address where the case is being transferred. (Code Civ. Proc., § 399, subd. (a).) The case management conference scheduled for 06/26/26 is VACATED. Defendant shall give notice of the ruling.
53	<i>First Staffing Group, LLC vs. DTS Electric, Inc.</i>	Plaintiff First Staffing Group, Inc.’s (“Plaintiff”) unopposed motion for summary judgment on its Complaint against defendant DTS Electric, Inc. (“Defendant”) is GRANTED. <u>Legal Standard</u>

“A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) Simply put, “[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment.” (*Id.* at p. 855.)

Where a plaintiff seeks summary judgment, the plaintiff’s burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c, subd. (p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) It is not plaintiff’s initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (*Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 565, citing *Aguilar*, supra, 25 Cal.4th at p. 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action”].) If the plaintiff meets this initial burden, the burden then shifts to the defendant “to show that a triable issue of one or more material facts exists as to that cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar*, supra, 25 Cal.4th at p. 843.)

Breach of Contract

“[T]he elements of a cause of action for breach of contract are [1] the existence of the contract, [2] plaintiff’s performance or excuse for nonperformance, [3] defendant’s breach, and [4] the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821, internal citation omitted.)

Here, the undisputed, material facts establish the existence of a written “Temporary Employee Staffing Agreement” (the “Agreement”) entered into by Plaintiff and Defendant. (ROA 22 [UF no. 1]; ROA 24 [Bojorquez Decl. at ¶ 3, Exh. 1].) Plaintiff performed under the Agreement, including, but not limited to, by providing workers to Defendant and paying those workers for providing services to Defendant. (UF no. 2; Bojorquez Decl. at ¶¶ 3, 6, 11, Exh. 1.) Defendant breached the Agreement by failing to make the payment due within 60 days of the last invoice. (UF no. 3; Bojorquez Decl. at ¶ 4.) As a result of the breach, Plaintiff suffered damages in the principal amount of \$170,183.13. (UF no. 4; Bojorquez Decl. at ¶ 5, Exh. 2.)

Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on its breach of contract claim against Defendant. The burden then shifts to Defendant to show that a triable issue of material fact exists. By failing to oppose the motion, Defendant has not met this burden. As such, the Court grants Plaintiff summary judgment on its breach of contract claim.

As an alternative ruling, the Court exercises its discretion to grant the motion because Plaintiff has met its initial prima facie showing, and Defendant did not submit an opposing separate statement. (Code Civ. Proc. § 437c, subd. (b)(3).)

		The Court notes that it need not reach the common counts, which were pled, in the alternative, in the Complaint. Plaintiff's request for prejudgment interest, attorneys' fees, and costs is denied without prejudice, because Plaintiff did not give proper notice that it would seek such relief in its notice of motion. (Code Civ. Proc. § 1010; Cal. R. Ct. Rule 3.1110(a); <i>People v. American Sur. Ins. Co.</i> (1999) 75 Cal.App.4th 719, 726.) Plaintiff shall give notice of the ruling and submit a proposed judgment to the court and serve it upon all parties. The Court Trial scheduled for 03/22/27 is vacated.
56	<i>Le vs. Placentia-Yorba Linda Unified School District</i>	Plaintiff Lucy Le's unopposed motion to compel Defendant Placentia-Yorba Linda Unified School District's further responses to her requests for production of documents, set one, is DENIED. Code Civ. Proc., § 2031.310(b)(1) requires a party moving to compel further responses to document demands to set forth specific facts showing good cause justifying the discovery sought by the inspection demand. To establish "good cause," the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the document would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (See <i>Glenfed Develop. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Pa.)</i> (1997) 53 Cal.App.4th 1113, 1117.)

		In addition, a party moving to compel production must also submit a separate statement pursuant to Cal. Rules of Ct., Rule 3.1345(c). Plaintiff here failed to file the requisite separate statement. Nor did she include the subject discovery requests and responses with her motion. Plaintiff also fails to establish good cause for compelling further responses. Plaintiff does not explain how the requested documents are relevant and/or why they are necessary for trial preparation. (See Code Civ. Proc., § 2031.310(b)(1).) Accordingly, the motion is DENIED. The clerk will give notice.
57	<i>Limtiaco vs. Pirates Dinner Adventure</i>	The motion of defendant Norwood Stores, Inc. dba California Dinner and Entertainment, LLC dba Pirate’s Dinner Adventure for an order requiring plaintiff Anita Limtiaco to post a bond of \$75,000 is DENIED. This is an action for negligence/premises liability. Plaintiff fell and was injured at Defendant’s establishment while attending a Pirate’s Dinner Adventure. More specifically, Plaintiff alleges “she tripped on an unmarked, uneven, defective, cracked, broken and/or deteriorated step causing her to trip and fall,” [Complaint (ROA #2), ¶ GN-1.] Defendant has presented Plaintiff’s interrogatory responses, which say essentially the same thing, and her deposition testimony in which she describes standing up from her chair, while watching the show, to allow her son-in-law to pass behind her, and not seeing or realizing how close to the edge of the platform she was, which resulted in her taking a step onto nothing and falling. [Sherman Decl. (ROA #62), Exs. B and C.] “There

was not enough stairs or the -- the path -- the thing, where you stand.” *Id.*, Ex. C.]

Defendant also presented photographs produced by Plaintiff, which, Defendant contends, show no defect in the stair step. [Sherman Decl., Ex. E.] Finally, Defendant presents the declaration of its HR Director stating the stairs are lit with industry standard lighting and have metal strips to reflect that light. [Kyckelhahn Decl. (ROA #62), ¶¶ 5-6.] After Plaintiff’s fall, Defendant inspected the stair step and found it to be in perfect condition. [*Id.*, ¶ 8.]

In support of its request for a bond of \$75,000, Defendant’s counsel declares that Defendant has incurred “approximately \$35,000.00 in defense costs and fees, which are anticipated to increase by an additional \$40,000 or more through trial.” [Sherman Decl., ¶ 8.]

Though she resided in California at the time of her fall, Plaintiff no longer lives in California. [Limtiaco Decl. (ROA #69), ¶¶ 5, 7.] Though Plaintiff has not applied for a waiver of costs for indigency, she describes very limited financial resources and reduced living conditions. [*Id.*, ¶¶ 7-9.] She declares she cannot afford to post a bond of \$75,000 and if ordered to do so would have to dismiss her action. [*Id.*, ¶¶ 10-12.]

“When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney’s fees which may be awarded in the action or special proceeding. For the purposes of this section, ‘attorney’s fees’ means reasonable attorney’s fees a party may be authorized to recover by a statute apart from this

section or by contract.” Code Civ. Proc. § 1030(a)(bold added).

For purposes of a bond motion, residency is determined at the time of the motion. *See Myers v. Carter* (1960) 178 Cal.App.2d 622, 626-627 (finding plaintiff’s undisputed subsequent return to California, as found upon motion to reconsider order requiring bond, governed result).

The motion must be supported by points and authorities and affidavits showing: (1) plaintiff’s nonresidency; (2) a “reasonable possibility” defendant will prevail in the action; and (3) the nature and amount of costs and fees defendant is likely to incur in the action. Code Civ. Proc. § 1030(b).

To obtain an order requiring such bond, defendant must show a “reasonable possibility” that it will prevail at trial, and a declaration setting forth “the **nature and amount of the costs** and attorney’s fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding.” Code Civ. Proc. § 1030(a), (b) (bold added); *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1433 (fact that defendant prevailed in judicial arbitration established “reasonable possibility” it would prevail at trial). “If the court, after hearing, determines that the grounds for the motion have been established, the court shall order that the plaintiff file the undertaking in an amount specified in the court’s order as security for costs and attorney’s fees.” Code Civ. Proc., § 1030(c).

“The plaintiff shall file the undertaking not later than 30 days after service of the court’s order requiring it or within a greater time allowed by the court. If the plaintiff fails to file the undertaking within the time allowed, the plaintiff’s action or special proceeding shall be dismissed as to the

	defendant in whose favor the order requiring the undertaking was made.” Code Civ. Proc., § 1030(d). The purpose of section 1030 “is to enable a California resident sued by an out-of-state resident ‘ “to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction.” ’ [Citation.] The statute therefore acts to prevent out-of-state residents from filing frivolous lawsuits against California residents.” <i>Yao v. Superior Court</i> (2002) 104 Cal.App.4th 327, 331. The court has discretion to waive the posting of an undertaking to indigent persons (<i>Baltayan v. Estate of Getemyan</i> (2001) 90 Cal. App. 4th 1427, 1434) and to reduce the security bond for middle income litigants. <i>Alshafie v. Lallande</i> (2009) 171 Cal.App.4th 421, 435-436. This is, in fact, a question of due process and fundamental fairness. A defendant’s economic interest cannot be used to deny a litigant his “fundamental right of access to the courts.” <i>Alshafie v. Lallande</i>, 171 Cal.App.4th at 429 (citation and internal quote marks omitted). Residency: There is no dispute that Plaintiff now resides outside California. Reasonable Possibility of Prevailing: To meet its burden, Defendant is “not required to show that there was no possibility that [Plaintiff] could win at trial, but only that it was <i>reasonably possible</i> that [Defendant] would win.” <i>Baltayan, supra</i>, 90 Cal.App.4th at 1432, citing § 1030, subd. (b). Defendant points to its own evidence that there was no defect or damage to the stair step and what it describes as Plaintiff’s changing story, from her complaint and interrogatory response to her deposition, about how she came to fall. On the record presented, the jury’s weighing of Plaintiff’s
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testimony will be pivotal. In short, at this point it time, it appears that either party could prevail. This is sufficient for the court to find that it is reasonably probable that Defendant will prevail at trial.

Amount of Bond: It is this factor where Defendant's showing falls short. Defendant fails to adequately show evidence of costs incurred to justify the bond amount requested.

Defendant's counsel's declaration that Defendant has incurred approximately \$35,000 in defense fees and costs and anticipates incurring \$40,000 more through trial does not meet the statutory requirement of setting forth "the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur." Code Civ. Proc. §1030(b). Moreover, Defendant has included attorneys' fees in its bond amount without showing any right to recovery attorneys' fees in this action.

Code of Civil Procedure section 1030 makes it clear that an independent basis for recovery of fees is required – section 1030 itself does not provide a basis for recovery. Code Civ. Proc. §1030(a). For this reason, the motion to require Plaintiff to post a bond of \$75,000 is denied.

In addition, the court also notes that Plaintiff has established her inability to post a bond of \$75,000. Plaintiff has not obtained a cost waiver from the court and does not claim to be truly indigent but she does describe significantly reduced circumstances. [Limtiaco Decl., ¶¶ 7-9.] She has also credibly declared that if required to post a \$75,000 bond she would have to forfeit her action. [Limtiaco Decl., ¶¶ 10-12.] This is exactly what section 1030 is *not* supposed to achieve.

		This is an access to justice issue. It does not appear from the record that this is a frivolous lawsuit. The statute relied upon for this motion is “intended to prevent out-of-state residents from filing frivolous lawsuits against California residents.” <i>Yao v. Superior Court</i> (2002) 104 Cal.App.4th 327, 331. Here, there is no such evidence an out-of-state resident is filing a frivolous lawsuit. For all of the foregoing reasons, Defendant’s motion is denied.
58	<i>Neach vs. Pacheco</i>	Motion to Compel Responses to Special Interrogatories and Requests for Production and Request for Monetary Sanctions The motion by Plaintiffs Brian Neach (“Neach”) and Molly J. Magnuson (collectively, “Plaintiffs”) for an order compelling Defendant Rodric Anthony Pacheco (“Pacheco”) to serve verified Code-compliant responses, without objections, to Neach’s special interrogatories, set two, and Neach’s requests for production, set three, and compelling Defendant Pacheco and Neach, P.C. (“Law Firm”) to serve verified Code-compliant responses without objections to Neach’s special interrogatories, set two, and Neach’s requests for production, set two, is granted. The Court declines to consider Plaintiffs’ reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Defendants waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the

	interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (<i>See Leach v. Superior Court (Markum)</i> (1980) 111 Cal.App.3d 902, 905-906.) A propounding party may move for an order compelling responses to a demand for inspection at any time “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Defendant waived “any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).) There is no dispute the discovery at issue was electronically served on Defendants and that Defendants have not served any responses. (Neach Decl., ¶¶ 2-4, Exhibits 1, 2, 3, and 4; Opposition, 2:5-8 and 26-28, 3:1-2, 6-8, and 22-23; Rocha Decl., ¶¶ 5 and 6.) Although not required, Plaintiffs attempted to resolve this informally, but Defendants did not respond to any of Plaintiffs’ attempts to obtain responses without resorting to the Court. (<i>Id.</i>, ¶¶ 5-7, Exhibits 5 and 6.) Plaintiff’s motion is granted. Pacheco and Law Firm shall each serve their verified, Code-compliant responses, without objection to these written discovery requests within 15 days. Defendants did not show Defendants acted with substantial justification or that the impositions of sanctions would be unjust. Defendants shall pay
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		monetary sanctions in the amount of \$2,400 to Law Offices of Brian Neach within 30 days. (Code Civ. Proc., §§ 2030.290, subd. (c) and 2031.300, subd. (c).) Plaintiffs shall give notice.
59	<i>U.S. Bank National Association vs. Best Time Logistics Inc</i>	On the motion of the Law Office of Mandeep S. Rupal, by Mandeep Rupal, counsel of record for defendant Best Time Logistics Inc. for an order relieving as counsel for Defendant, the court will grant the motion if prior to the hearing counsel files a proof of service of the moving papers on defendants and a proof of service of a notice of continuance as to both defendants and the opposing party. Otherwise, the motion will be continued to a future date to be determined by the court. If the proofs of proper and timely service are filed, the court will amend the proposed order to show the next hearing date and will sign the proposed order as amended. After the court signs the order, counsel shall serve the signed order on Defendant and the other parties. Counsel will be relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed order upon Defendant and all other parties.
60	<i>Vasquez vs. American Honda Motor Company, Inc.</i>	Defendant American Honda Motor Company, Inc.'s motion to compel plaintiff Juanita Vasquez to appear for deposition pursuant to Code of Civil Procedure section 2025.450 is denied, except that Plaintiff is ordered to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff's deposition.

	Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” Code Civ. Proc. § 2025.450(a). Pursuant to Code of Civil Procedure section 2025.410, subdivision (a), a party “served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” Code of Civil Procedure section 2025.450, subdivision (a) does not appear to apply here because Plaintiff served written objections pursuant to Code of Civil Procedure section 2025.410, subdivision (a). Defendant has not argued or shown that the objection served was not valid. Moreover, on the record presented, it looks like the deposition did not go forward – so Plaintiff did not fail to appear for examination.
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		Nonetheless, recognizing that the parties need some direction, the court orders Plaintiff to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff's deposition. The motion is otherwise denied. In the absence of an applicable statute, there is no provision for sanctions under the statutes cited in Defendant's notice of motion and supporting memorandum.
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